

THE HONOURABLE SRI JUSTICE SUJOY PAUL

AND

THE HON'BLE Dr. JUSTICE G. RADHA RANI

WRIT PETITION No.36744 of 2024

ORDER *(per Hon'ble SP,J)*

Sri Mohd.Mukhairuddin, learned Counsel for the petitioner, Sri Dominic Fernandes, learned Senior Standing Counsel for CBIC, for respondent Nos. 1 and 2 and Sri B. Mukherjee, learned counsel representing Sri Gadi Praveen Kumar, learned Deputy Solicitor General of India, for respondent No.3

2. Learned counsel for the parties jointly and fairly urge that this matter is covered by recent order passed by this Court in W.P.No.2123 of 2024 and batch, dated 02.01.2025, and it may be disposed of in same terms.

3. Prayer is allowed.

4. Accordingly, this Writ Petition is **disposed of** in terms of aforesaid order. If the appeal is preferred by the petitioner within (45) days from today before the appellate authority, the said authority shall consider and decide the appeal on merits and it shall not be thrown overboard on the ground of limitation. It is

made clear that this Court has not expressed any opinion on merits of the case. There shall be no order as to costs.

Interlocutory applications, if any pending, shall also stand closed.

SUJOY PAUL, J

Dr. G. RADHARANI, J

Date: 07.01.2025

Nvl/sa